

1 to those orders. You know what they are. You're
2 expected to follow them now. Please finish up
3 your -- or complete your opening statement. It is
4 only a preview of what the case is. It's not --

5 MS. WALSH: Okay. Okay.

6 THE COURT: You're not here to tell the jury
7 your entire case. You're just outlining the case for
8 them.

9 MS. WALSH: Okay.

10 When the Seroquel was put in Mr. Russell's
11 wine on two occasions, it happened in the same week,
12 in early -- mid May of 2018, when the security guards
13 and the nanny helped me. I never handed Mr. Russell
14 a glass of wine. We put the medication in the wine,
15 and I placed it near him as he was putting holes in
16 the walls, engaged in these bizarre delusions. I
17 never saw Mr. Russell drink the wine. I left the
18 room. He was left with his security guards. We
19 never told him that we attempted to put Seroquel in
20 his wine. Mr. Russell only found out about it about
21 two weeks later, when I fired the nanny, who had
22 insisted in doing it. And she was angry that I fired
23 her, so she told Mr. Russell, and Mr. Russell
24 immediately told me he understood and it was okay.

25 Mr. Russell does not know the dates of when he



1 was allegedly drugged. He never suffered any
2 injuries. He was never brought to the ER during that
3 time. He never complained of injuries. I never
4 witnessed any behavior that was not unusual for him.
5 He didn't fall. It happened in the safety of our own
6 apartment. There were security guards there,
7 monitoring him, and they believed it was the best
8 call at the time.

9 Shortly after, I tried to leave San Francisco
10 with our daughter on June 4th of 2018. I did so when
11 Mr. Russell left the apartment. Police had to get
12 involved. The Uber driver was terrified. I had to
13 return back to the apartment. I did not want to be
14 in San Francisco to begin with. I did not want to be
15 left alone in an apartment with Mr. Russell, but
16 that's the situation I was in. And when I tried to
17 leave the first time from San Francisco, Mr. Russell
18 first told me that he was going to press criminal
19 charges against me for drugging him. And he only
20 used the term "drugging" when I tried to leave him.

21 Finally Mr. Russell allowed our daughter and I
22 to return to our home in New York, and upon my return
23 in New York, I sought protection from the court, and
24 I have had protection from the Court --

25 MR. WALLER: Objection.



1 MS. WALSH: You mentioned the --

2 THE COURT: Ma'am, you cannot --

3 MR. WALLER: This is bad faith.

4 THE COURT: Whatever happened in New York is
5 not pertinent to this proceeding, and the jury shall
6 disregard -- will be instructed to disregard any of
7 the proceedings or the outcome of those proceedings.

8 MS. WALSH: You don't think it's relevant --

9 THE COURT: It's not relevant to this case.

10 MS. WALSH: Okay.

11 THE COURT: Ma'am, please complete your
12 remarks. I want to give the jury a break.

13 MS. WALSH: I have not had -- I have not had
14 contact with Mr. Russell or has he been able to come
15 near myself or my daughter for over four years.

16 MR. WALLER: Objection. It's another way of
17 saying the same exact thing.

18 THE COURT: Ms. Walsh, please just complete
19 your remarks as it pertains to this case. I'm not
20 going to have to remind you again. If you do, there
21 are other consequences. So please finish up what you
22 have to say and -- in the next few minutes.

23 MS. WALSH: Okay. At the time when Seroquel
24 was put in Mr. Russell's wine, I had assistance from
25 the nanny and his security guards, were former --

1 many of whom were former law enforcement. It
2 happened on two occasions. I don't know if
3 Mr. Russell drank the wine. I never saw him drink
4 the wine. And I do not think that I should be liable
5 for any damages because Mr. Russell did not suffer
6 any injuries. I was not the one who made the final
7 call to give him the Seroquel in the wine; it was his
8 security team. And it was self-defense. I was
9 terrified of him, and I was trying to protect our
10 daughter. You know, she was an infant at the time.

11 So -- and I'm not allowed to speak about what
12 happened after or go into other things --

13 MR. WALLER: Objection.

14 THE COURT: Sustained.

15 MS. WALSH: But I think that you should not
16 find that I'm liable for anything towards
17 Mr. Russell.

18 THE COURT: All right. Thank you. We're
19 going to take our midmorning break. Let's come back
20 at -- it's now ten minutes to 11. Let's come back at
21 11:10. I'll give you a 20-minute break, and then
22 we'll continue to noon. Very well. Thank you.
23 Remember not to form or express any opinions about
24 this case to anyone.

25 (Jury Exits the Courtroom.)

1 (Whereupon, a break was taken.)

2 THE COURT: We're on the record at this
3 moment. The jury has been excused, and present in
4 the courtroom is Ms. Walsh and Mr. Waller.
5 Mr. Waller has asked to have a brief conversation
6 with the Court regarding concerns about Ms. Walsh's
7 opening statement.

8 MR. WALLER: Yes. Your Honor, first of all,
9 she did testify, basically, instead of giving an
10 opening statement. She was argumentative. She
11 made -- she talked about facts that are clearly --
12 are going to be inadmissible, trying to poison the
13 jurors' minds against Mr. Russell.

14 But most concerning is the fact that Ms. Walsh
15 blatantly thwarted and intentionally thwarted the
16 Court's rulings, and that's very concerning. I think
17 I might have grounds for a mistrial already, even
18 though I understand that the judge could instruct the
19 jury again to disregard this as not evidence. But
20 there's absolutely no reason to think that the same
21 exact thing is going to happen when she takes the
22 stand and tries to testify.

23 I don't have an opportunity -- I mean,
24 there -- I see this going towards, you know, an
25 application for a mistrial if this is going to

1 continue. We had these motions. We spent a whole
2 day doing motions in limine for the specific purpose
3 of limiting certain areas of testimony. Most
4 concerning is, I think that already now Ms. Walsh has
5 opened the door for me to go into her lengthy mental
6 health history, based on what she said. This is
7 going to turn potentially a one- to
8 one-and-a-half-day trial into a week trial if that's
9 going to happen. She's going way beyond the scope of
10 the complaint and if -- how -- she was not supposed
11 to go into Mr. Russell's mental health history. She
12 did it extensively during the opening statement, and
13 that -- I would ask that I be allowed now to go into
14 her mental health history.

15 MS. WALSH: Your Honor, Mr. Waller himself and
16 his opening statement mentioned his client's
17 prescription medication history, which we talked
18 about could not be included. You also never said
19 that -- that Mr. -- I believed because you denied his
20 motion about mental health -- and Mr. Waller,
21 yourself, you said you wanted to keep your client's
22 mental health something that could be discussed. I'm
23 pleading self-defense. A large majority of why I was
24 afraid of Mr. Russell is because of his disturbing
25 mental issues. If I can't speak about that, I can't

1 properly articulate why I was so afraid of him,
2 because the truth is that's the largest portion of
3 it.

4 THE COURT: Ma'am, you -- the Court has ruled
5 that you can't get into his mental health history.
6 You can describe his behavior beforehand. Mental
7 health history is hearsay, and that's excluded.

8 MS. WALSH: Is it because I said he acted like
9 he was schizophrenic? Is that what it was?

10 MR. WALLER: One of many.

11 MS. WALSH: I mean, Mr. Waller, you said the
12 nanny --

13 THE COURT: Ms. Walsh, you need to understand
14 that you're not addressing Mr. Waller here. You're
15 addressing the Court.

16 MS. WALSH: Okay.

17 THE COURT: And I expect you to follow the
18 motions in limine, the rulings that came out of
19 the motions -- the rulings that came out of the
20 motions in limine in this case. Please do so. There
21 are sanctions and consequences as a result. I'm not
22 going to declare a mistrial yet. I think it's
23 self-evident that you've gone off on many different
24 tangents. You need to focus on your case and focus
25 on the issues that are presented by Mr. Waller's

1 case.

2 MS. WALSH: Your Honor --

3 THE COURT: If there was a battery, if there
4 was intentional infliction of emotional distress, and
5 if your case is self-defense, you need to describe
6 the events which led up to your alleged misconduct in
7 this matter.

8 MS. WALSH: That's what I was attempting to
9 do, Your Honor.

10 THE COURT: No, but you can't bring in the
11 whole ball of wax. You have to be insightful and
12 precise with respect to what it is that you're saying
13 is in self-defense. You're not doing that. You're
14 just bringing in everything. I'm not going to allow
15 you to do that. That's going to prolong the case.
16 And if there are objections, they're going to be
17 sustained, and then you won't be permitted to tell
18 anything about the case because you don't seem to get
19 what the Court has told you with regard to the
20 motions in limine. I'm going to just give you a fair
21 warning here that you're running afoul of the Court's
22 rulings here. You can't disregard them.

23 MS. WALSH: Okay.

24 THE COURT: It's not a he-said/she-said. I
25 mean, just because he said it, I can do it now,

1 that's not how it works. You have to make the
2 objection if there's an issue.

3 Now, I'm not going to grant a mistrial in this
4 case. You are both here on a circumscribed period of
5 time. There's a window of time within which you want
6 to have this case done. I doubt you want to have to
7 start again and go through another jury selection
8 process. That means you have to stay longer in
9 San Francisco.

10 MS. WALSH: Okay. Then maybe I should just
11 leave, Your Honor. If I -- I'm traumatized by being
12 here and by dealing with Mr. Russell --

13 THE COURT: Ma'am, I have told you many times
14 I understand --

15 MS. WALSH: I want to go back to my daughter.
16 She's sick. I have a business, a home. Like I
17 just -- I do not feel -- I do not feel like I can
18 handle defending myself, and I can't afford a lawyer.
19 It's too traumatizing to me.

20 THE COURT: Well, ma'am, I can appreciate it.
21 And the Court -- I believe I have shown great deal of
22 patience here. I've asked you to take a deep breath
23 with respect to this. You're here; you have to deal
24 with it, and you have to take the bull by the horns.
25 But you cannot take the whole thing -- everything in

1 your life that's happened in this case, brought into
2 this case. That's not what this case is about. It's
3 very discrete.

4 MS. WALSH: Can -- so, Your Honor, can you --

5 THE COURT: I cannot tell you what to do here.
6 It is not -- I've given you the rulings in this case,
7 and you're expected to abide by them, just like
8 anybody.

9 MS. WALSH: Okay.

10 THE COURT: Period. That's a ruling. Abide
11 by my previous rulings in the motions in limine.

12 MS. WALSH: Can I state one thing for the
13 record, please? In Mr. Waller's opening statement,
14 he said -- he said a statement about the nanny and
15 the drugging, that the nanny walked in on me drugging
16 Mr. Russell. The nanny said on the record that -- I
17 believe she said on the record that she was there and
18 assisted me with the drugging --

19 THE COURT: Ms. Walsh, whatever he said, he
20 has to prove.

21 MS. WALSH: Okay. Okay.

22 THE COURT: What he's saying is not evidence.
23 This is what he believes happened. Then the question
24 becomes whether he can prove that on the witness
25 stand or through other testimony or other evidence,

1 same as you.

2 MS. WALSH: Yeah. I mean, I had like an
3 objection to -- I really tried to prepare like the
4 best I could.

5 THE COURT: I understand. If you were a
6 lawyer, I would say I would have different
7 expectations. I understand you're proceeding in pro
8 per persona. So I give -- I have some flexibility
9 here, but I do expect people who are making
10 presentations to listen to my rulings.

11 MS. WALSH: I know. It's just unclear, Your
12 Honor, because Mr. Waller said yesterday that he
13 wanted to be able to discuss his client's mental
14 health, so I thought that I was also able to discuss
15 it. I wasn't trying to go against the ruling.

16 THE COURT: The objection was sustained.
17 That's your answer to that question.

18 All right. Let's bring the jury back in.

19 MR. WALLER: One last very quick issue, Your
20 Honor. There's a -- yesterday -- although she's not
21 on Ms. Walsh's official witness list that she filed
22 with the Court, yesterday during jury selection
23 Ms. Walsh gave the names of two witnesses to read to
24 the jury. It was Rashmi Narendra and, I think,
25 Brendan Walsh. Now, Ms. Narendra is present in the